

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 12**

**Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen  
191 North First Street, San Jose, CA 95113  
Telephone: (408) 882-2230

**DATE: 04/17/2026 TIME: 9:00 A.M. and 9:01 A.M.**

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

**TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:**

- (1) The Court - by calling (408) 808-6856 and
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

**\*\*Please specify the issue to be contested when calling the Court and counsel\*\***

**IN-PERSON APPEARANCES:** Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

**REMOTE APPEARANCES:** Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

**TELEPHONIC APPEARANCE IS PROHIBITED,** unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

**RECORDING IS PROHIBITED:** State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

**COURT REPORTERS ARE NOT PROVIDED:** If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website

[https://www.scsccourt.org/general\\_info/court\\_reporters.shtml](https://www.scsccourt.org/general_info/court_reporters.shtml).

**SCHEDULING MOTION HEARINGS:** Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

**FINAL ORDERS:** The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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| LINE #                 | CASE #     | CASE TITLE                                             | RULING                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|------------------------|------------|--------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 1</a> | 24CV449536 | Tina Boales<br>v.<br>City of San Jose                  | DEMURRER<br><br>Please control click or scroll down to Line 1                                                                                                                                                                                                                                                                                                                                                                                       |
| <a href="#">LINE 2</a> | 23CV412091 | James Clark<br>v.<br>Ford Motor Company<br>et. al      | MOTION: SUMMARY JUDGMENT/ADJUDICATION<br><br>(Notice of Conditional Settlement filed 04-15-26. Motion for Summary Adjudication is Off Calendar)                                                                                                                                                                                                                                                                                                     |
| <a href="#">LINE 3</a> | 25CV477676 | Johnson et. al.<br>v.<br>Hanford Hotels, Inc.<br>et.al | MOTION TO COMPEL<br><br>Defendant's Motion to Compel Production of Documents from non-party San Jose Police Department. No Opposition by Plaintiff. (Plaintiff's objections to unverified statements noted; to be litigated in trial department.)<br><br>Good cause appearing, Defendant's motion to compel is GRANTED. Defendant to prepare the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing. |
| <a href="#">LINE 4</a> | 25CV464946 | Michael Floyd<br>v.<br>Crunch Fitness - San Jose       | MOTION FOR LEAVE TO REQUET DISCOVERY<br><br>Plaintiff's motion for leave to request discovery. Notice is proper.<br><br>The Court has received no opposition from Defendant.<br><br>Good cause appearing, Plaintiff's motion is GRANTED<br><br>Plaintiff to prepare the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.                                                                          |

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| <a href="#">LINE 5</a> | 24CV434244 | Felice, et. al<br>v.<br>Essex Property Trust | <p>MOTION TO COMPEL</p> <p>Plaintiff's Motion to Compel Further Responses to Special Interrogatories.</p> <p>Notice is proper. The Court has received no opposition from Defendant.</p> <p>A failure to oppose a motion may be deemed a consent to the granting of the motion. CRC Rule 8.54(c). Failure to oppose a motion leads to the presumption that Defendant has no meritorious arguments. (See <i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal. App. 3d 481, 489.)</p> <p>Good Cause Appearing, Plaintiff's motion is GRANTED. Defendant is ordered to provide Code-Compliant responses to discovery requests that Plaintiff propounded on it. Under California's Code of Civil Procedure, to be Code Compliant, Defendant's responses to Special Interrogatories must comply with CCP §§ 2030.210 &amp; 2030.220.</p> <p>Plaintiff to prepare the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.</p> |
| <b>9:01</b>            |            |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| Line 1                 | 25CV456053 | Sudhanshy Juneja<br>v.<br>Lavan Construction | <p>ORDER OF EXAMINATION<br/>OEX against Fahid Poudat</p> <p>Plaintiff submits an application for order for appearance and examination directed to Fahid Poudat, Secretary of a California corporation that is the judgment debtor, pursuant to Corporations Code section 312(a).</p> <p>No opposition has been received. Good cause appearing, Plaintiff's application is GRANTED.</p> <p>Fahid Poudat is ordered to appear for examination concerning the judgment debtor's property and matters relevant to enforcement of the judgment.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                    |

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|--------|------------|----------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Line 2 | 25CV457154 | Shaohe Xu<br>v.<br>Qui and Zhao              | <p>MOTION TO WITHDRAW AS ATTORNEY</p> <p>Attorney Shanshan Zou, attorney for Plaintiff moves under Code of Civil Procedure 284(2) for an Order to Be Relieved as Counsel. Notice is Proper. No Opposition received.</p> <p>As the Motion complies with applicable law and is duly served, the Motion will be granted following the upcoming Demurrer scheduled on April 29, 2026. (The Court notes Mr. Zou has already filed an Opposition to the Demurrer.)</p> <p>The Court will sign the proposed order that has already been filed after the April 29, 2026 court date.</p> |
| Line 3 | 25CV456053 | Sudhanshy Juneja<br>v.<br>Lavan Construction | <p>RETURN OF WARRANT/ ORDER OF EXAMINATION</p> <p>Bench Warrant for Morin Cyrus Poudat was ordered on January 14, 2026</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|        |            |                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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## **Calendar Line 1**

**Case Name:** *Tina Boales v. City of San Jose*

**Case No.:** 24-CV-449536

Defendant City of San Jose (“City”) demurs to the first, second, and third causes of action in the fourth amended complaint (“4AC”) filed by plaintiff Tina Boales (“Plaintiff”), a self-represented litigant.

### **City’s Request for Judicial Notice**

The City’s request for judicial notice is GRANTED. (See Evid. Code, § 452, subd. (h); see also *Holland v. Morse Diesel Internat., Inc.* (2001) 86 Cal.App.4th 1443, 1447 [court may take judicial notice of exhibits attached to the complaint].)

### **First Cause of Action: Disparate Treatment**

The demurrer to the first cause of action is OVERRULED.

“FEHA proscribes two types of disability discrimination: (1) discrimination arising from an employer’s intentionally discriminatory act against an employee because of his or her disability (referred to as disparate treatment discrimination), and (2) discrimination resulting from an employer’s facially neutral practice or policy that has a disproportionate effect on employees suffering from a disability (referred to as disparate impact discrimination).” (*Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1160 (*Featherstone*).)

As relevant here, “[t]o establish a prima facie case for disparate treatment discrimination, plaintiff must show (1) she suffers from a disability, (2) she is otherwise qualified to do her job, (3) she suffered an adverse employment action, and (4) the employer harbored discriminatory intent.” (*Featherstone, supra*, 10 Cal.App.5th at p. 1161.)

The City argues there is no claim stated for disparate treatment as Plaintiff fails to allege she was qualified to do the essential functions of her job as a lifeguard, namely rescuing swimmers in distress under all circumstances. In particular, the City’s primary safety concern was whether Plaintiff could “lift, push, or pull anyone out of a pool weighing more than 30 lbs.” (See 4AC at p. 5:19-22; Reply at p. 1:3-6, 23-24.) Plaintiff alleges that, despite her disability, she could pull/push anyone from a pool, regardless of weight thus qualifying her for the lifeguard position. (4AC at p. 6:6-8.) Even though the City may disagree with these allegations, they must be accepted as true on demurrer. (See *Olson v. Toy* (1996) 46 Cal.App.4th 818, 823 [for purposes of demurrer, we accept these allegations as true]; see also *Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406 [“Because a demurrer tests only the legal sufficiency of the pleading, we accept as true even the most improbable alleged facts, and we do not concern ourselves with the plaintiff’s ability to prove its allegations.”].)

### **Second Cause of Action: Failure to Accommodate**

The demurrer to the second cause of action is OVERRULED.

FEHA makes it unlawful for an employer “to fail to make reasonable accommodation for the known physical...disability of an applicant or employee” except where the employer demonstrates that an accommodation would “produce undue hardship...to its operation.” (Gov’t Code, § 12940, subd. (m).) A “reasonable accommodation” is any “modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.” (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1010.)

“The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff’s disability. [Citation.]” (*Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1192.)

Reasonable accommodations may include “[j]ob restricting, part-time or modified work schedules, reassignment to a vacant position...and other similar accommodations for individuals with disabilities.” (Gov’t Code, § 12926, subd. (p).) “FEHA does not obligate an employer to choose the best accommodation or the specific accommodation of a disabled employee or applicant seeks. It requires only that the accommodation chosen be ‘reasonable.’ [Citation.]” (*Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, 1222.)

The City first argues there is no claim stated as Plaintiff fails to allege she can perform the essential functions of the lifeguard position. The court has considered and rejected this argument for reasons explained above. The City also contends there are no facts showing it failed to accommodate Plaintiff’s disability as the City encouraged her to find an alternative job opening where she met the minimum qualifications. (See 4AC at p. 8:8-13.) But, “an employer who knows of the disability of an employee has an affirmative duty to make known to the employee other suitable job opportunities with the employer and to determine whether the employee is interested in, and qualified for, those positions.” (*Prilliman v. United Air Lines, Inc.* (1997) 53 Cal.App.4th 935, 950-951.) Here, the City merely asked Plaintiff to find an alternative job opening. The City did not satisfy its affirmative duty to offer Plaintiff suitable job opportunities within City departments to determine whether she was interested in or would qualify for those positions.

### **Third Cause of Action: Discriminatory Hiring Practices**

The demurrer to the third cause of action is OVERRULED.

To establish a prima facie case of discriminatory hiring, a plaintiff must show: (1) she has a disability; (2) she applied and was qualified for a job which the employer was seeking applicants; (3) that, despite her qualifications, she was rejected; and (4) that, after her rejection, the position remained open and the employer continued to seek applicants from persons of complainant’s qualifications. (*Walker v. Blue Cross of California* (1992) 4 Cal.App.4th 985, 998.)

As to the third cause of action, the City reiterates its prior argument that Plaintiff is unable to perform the essential functions for the lifeguard position. Again, the court has considered and rejected this argument for reasons articulated above.

**Disposition**

The City's request for judicial notice is GRANTED.

The demurrer to the first, second, and third causes of action for failure to state a valid claim is OVERRULED.

The court will prepare the Order.

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